

Comments to the United States Copyright Office (COLC)

Re: [Request for Public Comments: Digital Millennium Copyright Act, Access to Copyrighted Works](#)

Submitted by Steve Noble on behalf of the Learning Disabilities Association of America
Steve.noble@louisville.edu / 502-969-3088

Date: February 25, 2016

Section 1201 Study Submission of Comments

I. Background

SUMMARY: The United States Copyright Office is undertaking a public study to assess the operation of section 1201 of Title 17, including the triennial rulemaking process established under the DMCA to adopt exemptions to the prohibition against circumvention of technological measures that control access to copyrighted works. To aid this effort, and to ensure thorough assistance to Congress, the Office is seeking public input on a number of key questions.

The Learning Disabilities Association of America provides the following comments regarding the interests of people with language-based learning disabilities who routinely use assistive technologies, such as computerized text-to-speech software, in order to access information. Americans with learning disabilities which impact reading, including but not limited to such conditions as dyslexia and visual processing disorder, arguably constitute the largest percentage of people with "print disabilities" in the United States, making their access needs highly pertinent to the accessibility implications of the DMCA.

II. Subjects of Inquiry

Rulemaking Process

3. Should section 1201 be adjusted to provide for presumptive renewal of previously granted exemptions—for example, when there is no meaningful opposition to renewal—or otherwise be modified to streamline the process of continuing an existing exemption? If so, how?

Yes. This is particularly true when circumvention is required to meet the accessibility needs of people with print disabilities who would not otherwise be afforded the effective use of literary works when electronic materials have been locked by Digital Rights Management (DRM) techniques. The circumstances surrounding the need for this exemption have remained essentially unchanged since the inception of the DMCA, and having to repeat the regulatory process every three years represents an unfair burdening of disability advocacy organizations who must submit comments which will remain essentially unchanged each time a Request for

Public Comments is issued. This is certainly true for this specific exemption, as it was unchallenged during the last triennial rulemaking process. At the very least, Congress should amend the rulemaking process to create a presumption in favor of renewal when there is no meaningful opposition to the continuation of an exemption.

Anti-Trafficking Prohibitions

7. Should section 1201 be amended to allow the adoption of exemptions to the prohibition on circumvention that can extend to exemptions to the anti-trafficking prohibitions, and if so, in what way? For example, should the Register be able to recommend, and the Librarian able to adopt, exemptions that permit third-party assistance when justified by the record?

Yes. As neither the vast majority of persons with learning disabilities nor the majority of agency staff who may assist them will have the advanced technical knowledge needed to circumvent DRM mechanisms, they will rely heavily on the assistance of third parties who have the ability to create and distribute the advanced tools and services needed to make locked e-books and other digital materials accessible. Extending the exemption to the DMCA anti-trafficking prohibitions for the explicit purpose of making DRM-unlocking technology for accessibility more widely available would be of great assistance to persons with learning disabilities. Congress should amend the DMCA accordingly.

Permanent Exemptions

9. Please assess whether there are other permanent exemption categories that Congress should consider establishing—for example, to facilitate access to literary works by print-disabled persons?

Yes. The ability to override DRM locking mechanisms in order to facilitate access to literary works by print-disabled persons should be a permanent exemption. This issue is especially pertinent to the needs of students with learning disabilities who are enrolled in courses at the elementary, secondary and postsecondary level. In these settings, students with learning disabilities are commonly assisted by disability resource staff, teachers, or other school personnel who are obligated to provide accessible educational material to students under other laws, such as Section 504, the IDEA and the ADA. Sometimes these educational materials are purchased by the school, but in other cases (especially in postsecondary settings) these materials are purchased directly by the student. In cases where these materials are only available in a digital format which has been locked through DRM, educational institutions (as well as third-party access organizations or contractors who may assist in providing such services to the school) are left with the difficult legal position of requiring personnel or contractors to violate the anti-circumvention provisions of the DMCA in order to provide accessible materials to their students, as required under such other federal laws.

In some cases, a digital resource such as an e-book which has been locked through DRM will have to be "unlocked" through the use of third-party software or services in order to allow an assistive technology, such as a computerized text-to-speech application, to access the textual content for reading by a person with a learning disability. In other cases, even if the digital product has some form of embedded speech tool which will facilitate computerized reading of the words, the text may nonetheless require human editing for accessibility due to the way it has

been assembled, such as the use of inaccessible images used to express mathematical formulas instead of accessible digital text such as Mathematical Markup Language (MathML). In either case, school personnel will have to utilize DRM circumvention which is currently not lawful under the DMCA without the benefit of temporary exemptions granted by the Register. The same can be said for businesses that need to make training and resource materials accessible so that their employees with learning disabilities can effectively do their job. Further, people with learning disabilities who are simply trying to access digital materials for enjoyment or self-development deserve similar equitable access to information as those with disabilities enjoy.

The Register has previously determined that converting e-books into accessible formats is likely a non-infringing use both as a matter of fair use and under 17 U.S.C. 121, also known as the “Chafee Amendment,” which allows authorized entities to create accessible versions of works exclusively for use by persons who are blind, visually impaired, or print-disabled. In light of the common application of these two mechanisms of non-infringing use for the purpose of disability access, Congress should amend the DMCA to explicitly exempt DRM circumvention actions when they are done so to provide such access.